

IN THE COURT OF CHIEF JUDICIAL MAGISTRATE, SHOPIAN

Present:- Imtiyaz Ahmad Lone

CNR No. JKSP030014932022
C.No. 1446/2022

D.O.I: 02-08-2022

JO CODE: JK00125

D.O.D: 02.02.2024

File No. 144/2022

In the case of:-

1. Laila Khan
D/o Tariq Ahmad Khan
W/o Naiem-Ul-Haq
2. Peerzada Nayhan Ahrar.
S/o Naiem-Ul-Haq.
Minor through mother Laila Khan
Residents of Bongam Shopian
At Present Sofanaman Pinjoora Shopian
Tehsil and District Shopian.

Petitioners/Applicants

V/S

Dr Naiem-Ul-Haq
S/o Farooq Ahmad Ahrar
R/o Bongam Shopian
Working in SKIMS Soura Srinagar
Department of CVTS SKIMS
Designation Specialist Doctor

Respondent/Respondent

In the matter of: - Petition under section 125 Cr.P.C.

Present: Advocate M. Mubashir Gatoo & Associates for the Petitioners
Advocate Ab Musavir Tak & Associates for the Respondent.

ORDER/-

By virtue of this order, I propose to dispose off an application filed by the Applicants/Petitioners under Sec. 125 Cr.P.C claiming grant of maintenance to the tune of Rs.1,00,000/= per month from the Respondent on the grounds which inter alia provide that the Petitioner No. 01 was married with the Respondent on 25.05.2016 in accordance with Shariat and Muslim Personal Law and out of this wedlock one male issue (Petitioner No. 02) was born who is residing with his mother at Sofanaman Pinjoora Shopian. The Petitioner No. 01 is the legally wedded wife of the Respondent and Petitioner No. 02 is the minor son of the Respondent as such the Respondent is bound to maintain the Petitioners and fulfil all their basic necessities of life for the betterment and for the survival and sustenance of the



Petitioners as per their standard of life. The Respondent has remained loyal and has been taking care of the Petitioner No. 01 in the beginning of the marriage for two years then suddenly his behaviour changed without any cause or reason. Thereafter the Respondent turned cruel, inhuman and brutal towards the Petitioner No. 01 and has always put the Petitioner No. 1 to an inhuman treatment as the Respondent usually beats the Petitioner No. 1 and also never takes care of the Petitioners. The Petitioner No. 1 along with the Petitioner No. 2 has been always devoid of maintenance, love and care from the Respondent who spends everything in his own luxuries and is thus avoiding the responsibilities and liabilities of a husband and father in the case of maintenance of the Petitioners respectively. The Respondent has thrown away the Petitioner No.1 forcibly from his residence in the month August 2021 along with minor issue and the Petitioner No.1, has take refuge in the house of her parents at Sofanamān Pīnjoora Shopian. The Petitioner No. 1 requested the Respondent personally many times to maintain the Petitioners but the Respondent did not concede to the request of the Petitioner No. 1 and continued to neglect them. The parents of Petitioner No. 1 and other relatives also requested the Respondent to change the behaviour towards the Petitioners and to maintain them to the best of their satisfaction but the Respondent did not accept their request. The Respondent continued his callous behaviour towards the Petitioners and without any reason and justification have failed to maintain the Petitioners nor has paid any maintenance allowance towards the Petitioners, despite a volume of requests from the Petitioner No. 1 and her family to take the Petitioners home and maintain them properly. The Respondent was also requested upon by the Petitioner No. 1 and her family through the mediation of various respectable citizens of the locality but the Respondent has no care and is paying no heed to the requests and sobs of the Petitioner No. 1 which is otherwise also a legal duty cast upon the Respondent under law and the Sharait which is governing the parties herein. The Respondent is having the sufficient source of income as the Respondent is a Govt. employee working in SKIMS Soura Srinagar Specialist Doctor, presently pursuing MCH and is withdrawing monthly handsome salary of Rs. 1,10,000/- besides the Respondent being the only son of his father has a big chunk of land in the shape of apple fruit bearing orchard at Bongam, Shalgam Arhama and Vehil which generates annually more than Rs. Twenty Lakh, which are looked after and maintained by the Respondent himself and the entire income of these orchards is received and enjoyed by the Respondent himself alone because of the fact his father who retired as a District Horticultural Officer has irregular health and is heart patient as such is not in a position to maintain or receive the usufructs of the orchards himself. It is stated that the father of Respondent is a retired District Horticulture

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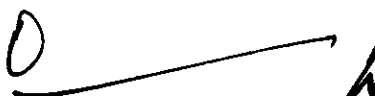
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Officer and is receiving handsome pension amount and also mother of Respondent is also retired teacher receiving good sum, amount as pension and there is no financial liability / responsibility upon the Respondent. It is alleged that the Respondent is enjoying himself luxurious life without any liability / responsibility towards the parents and the petitioners such wants to be free from the marital liabilities as well. The Respondent has two residential houses at Srinagar, one residential house at Jammu and one residential house at Bongam Shopian which are solely enjoyed by the Respondent. The Petitioner is a post graduate in law (LLM) having a brilliant academic record, was practicing for some time at District Court Shopian and was also a member of District Consumer Court Shopian. The Petitioner has lost all the jobs and income because of the rude behaviour and restrictions of the Respondent. It is stated that the Petitioner belongs to a reputed family who have a good status, respect and regards in the whole area and are known throughout the valley belonging to respectable dynasty. The monthly expenses of the Petitioners about Rs. 1,00,000/- per month on the basic necessities and the daily needs like the expenses of food, clothing, day to day expenses as per the status of the Petitioner No, 01 and the family background besides the expenses in the shape of monthly fee of Petitioner No. 02 who is studying in a reputed school Birla Open Mind International School at Pampore Srinagar where the Petitioner No. 01 has to pay monthly fee including the bus freight, tuition fee, uniforms and other related charges to the tune of Rs. 20,000/- per month towards the school authorities. It is finally submitted that the Petitioners are residing within the territorial jurisdiction of this Hon'ble Court hence this Hon'ble court has got the jurisdiction to entertain and try the present petition.

Notices were issued to the Respondent on 05-08-2022, and Advocate Abdul Musavir Tak filed power of attorney on behalf of Respondent and filed the objections wherein it is stated that the section 125 of Cr.P.C being an enactment to prevent vagrancy of destitute people who are unable to maintain themselves and on some genuine and reasonable grounds can rely upon and claim maintenance from those who are under a legal and moral obligation to maintain them, however the provision has been misused by some people having selfish interests and by giving false justification to claim maintenance by invoking the provision above wrongly as the Hon'ble courts before passing an order shall satisfy itself that such women are justified in claiming maintenance, more particularly when the plea of divorce has been raised and in that eventuality it becomes the bounden duty of the courts to firstly enquire about the divorce plea and when the court gets satisfied that marriage subsists in between the parties and the Petitioner is clothed in the status of wife then and only then courts must issue interim maintenance order, otherwise not. The Respondent further states that the Petitioner

no. 1 and the Respondent has been married in accordance with the Muslim Personal Law and in accordance with the custom prevalent in the families few years ago and out of the said wedlock one male issue was begotten and thereafter due to the dispute in between the parties the Respondent tried to resolve it but to the ill fate of the Respondent, the Petitioner no.1 didn't return to her matrimonial relationship and due to the cruel some nature of the Petitioner no. 1 which tarnished the hopes of the Respondent. The Petitioner no. 1 always used to quarrel with the Respondent and his family on minor issues and that the Petitioner no.1 is not the wife of the Respondent as the existing matrimonial relationship in between the Petitioner no.1 and Respondent does not exist anymore as the Respondent has pronounced divorce to the Petitioner no.1. The Respondent states that the Petitioner no.1 and the Respondent are no more husband and wife, so the question of maintenance to the Petitioner no. 1 does not arise at all. The Respondent tried a lot to resolve the dispute in between the Petitioner no.1 and the Respondent but to the ill fate of the Respondent the Petitioner never mend her attitude towards the Respondent and thus was divorced by the Respondent. The Petitioner no. 1 after marriage lived peacefully and with love and affection and Respondent has been sincere towards the Petitioner and has provided all love and care to her. But to the ill fate of the Respondent the Petitioner no. 1 and her family were not happy with the Respondent's sincerity which forced the Respondent to pronounce the divorce. The Respondent submits that he is not bound to maintain the Petitioner no. 1 as there exists no matrimonial relationship in between them after pronouncement of the valid divorce and that the Respondent is a student and is presently pursuing the MCH Degree and is on monthly stipend and putting up at Hostel SKIMS Soura. The petition is based on false, baseless and flimsy grounds, and thus deserves to be dismissed. The Respondent tried to resolve the dispute in between Petitioner no.1 and Respondent but when all the reconciliatory attempts failed; the Respondent was forced by the circumstances to divorce the Petitioner no. 1. The Respondent states that he is already maintaining his minor son to the best of Respondent's ability and capacity. The Respondent is persuing MCH Degree at SKIMS Soura and earns merger amount for his family and the Petitioner is earning lady drawing a handsome salary as she is working as teacher at BOMIS Galander Pulwama.

The preliminary statement of both the parties was recorded and an interim maintenance order was passed vide order dated 13-10-2022 whereby the Respondent was directed to pay a monthly maintenance of Rs 13000/- towards the Petitioner no. 01 and Rs 15000/- towards the Petitioner no. 02 i.e a total of Rs 28000/- from the date of filing of the interim application. Thereafter, the parties were directed to lead the evidence in support of their case. The said



interim order dated 13-10-2022 was challenged by the Respondent before the Court of Sessions Judge Shopian wherein the Hon'ble Court of Sessions Judge, Shopian vide order dated: 11-12-2023 modified the order dated 13-10-2022 passed by Ld. Chief Judicial Magistrate, Shopian to the extent that Respondent shall pay interim monthly maintenance of Rs 5000/- and Rs 10000/- in favour of the Petitioner no. 01 and Petitioner no. 02 respectively from the date of institution of interim application i.e. 01-08-2022 . The same order was challenged by the petitioners before the Hon'ble High Court of J&K&L, at Srinagar and the Hon'ble High Court observed that the Respondent is due for completion of his course and payment of stipend is going to be co-terminus with the completion of course and that will be literally leaving the Respondent without any employment at his disposal and render him without any source of income. The Hon'ble High Court further observed that this aspect of the matter can figure later at the relevant point of time and in the meantime, it was directed that the Respondent shall pay to the Petitioners a lump-sum amount of Rs. 20,000/- per month before the Court of Chief Judicial Magistrate, Shopian.

After filing the objections by the Respondent in the present petition, the Petitioners were directed to adduce the evidence and the Petitioners have produced evidence affidavit on her behalf and on behalf of three other persons namely Tariq Ahmad Khan, Shahzad Alam and Ms. Shaheena Akhter.

Evidence Affidavit of Laila Khan D/o Tariq Ahmad Khan W/o Naiem-Ul-Haq Ahrar R/o Sofanaman Pinjura Shopian is reproduced as:

I, Laila Khan D/o. Tariq Ahmad Khan R/o. Bongam, Shopian Age: 37 Years, Occupation: Housewife, do hereby solemnly affirm on oath as under:

That the deponent is legally wedded wife of Respondent, marriage solemnized in the month of July, 2016 and out of the said wedlock, one issue namely Peerzada Nayhan Ahrar had born, who is presently of 04 years of age. That during first two years of marriage, Respondent was providing best standard of living to the deponent. The deponent was enjoying two shared residential houses, one at Bongam, Shopian and the other one at Sector-A, Hamza Colony, Kanipora Srinagar. The Respondent was providing to deponent each and every basic necessities of life at both shared residential houses like master bed room, domestic helper, standing kitchen having the facilities of double door fridge, oven, gas stove with three burners, dinner set, almirah for keeping utensils, Havells induction stove, induction cooker, induction utensils, Philips mixer grinder, semi-automatic washing machine and a private car. In addition to this, Respondent was purchasing branded clothes and items for deponent both during summers and winters. The Respondent was also taking

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deponent occasionally for outing purpose to tourist destinations like Gulmarg, Nishat, Shalimar etc. After the birth of minor son Peerzada Nayhan Ahrar, Respondent behaved as a good husband and as a loving father for some period. The Respondent was enjoying the birthdays of minor son Peerzada Nayhan Ahrar in a special manner spending more than Rs. 7,000/- on each birthday. Nayhan's last birthday was celebrated on 01.01.2021 at parental residential house situated at Jammu. That after two years of marriage, there was drastic change in the loving and caring nature of Respondent towards deponent. In the month of June 2020, Respondent beat deponent in the shared residential house at Bongam, Shopian. The neglectful behaviour as well acts of domestic violence like beating, mental agony, insulting, name calling etc. continued till the month of August 2021 when deponent along with minor issue were thrown away by the Respondent from the shared residential house situated at Sector-A, Hamza Colony, Kanipora Srinagar. Before deserting and throwing away, the Respondent in the month of July 2021 abused and beat deponent in shared residential house situated at Sector-A, Hamza Colony, Kanipora Srinagar in presence of his parents and no one among them showed any humanity towards the deponent. That from the Month of August 2021, deponent along with her minor issue have been altogether neglected by the Respondent and are living at parental home of deponent. In spite of this inhuman treatment, the deponent, her parents and other relatives tried their best to resume matrimonial relationship but Respondent denied any reconciliation. In the month of September 2021, Respondent came to the parental house of deponent situated at Sofanaman Pinjura, Shopian and take along with himself minor son. On the same day at evening when Respondent dropped minor son, mother of deponent begged Respondent for reconciliation. After much requests, Respondent came in to the parental residential house situated at Sofanaman Pinjura, Shopian and in presence of parents, abused deponent, beat deponent by using hand and feet, spitted on the face of deponent and left. Such inhuman act of Respondent was a shock to the parents of deponent which they could have never even dreamed. Due to this wild and inhuman act of Respondent as well continued negligence and acts of domestic violence towards deponent and her son, father of deponent is depressed and had suffered a minor heart stroke. The reason for desertion, neglectful behaviour and acts of domestic violence is that Respondent has got involved into an extra marital relationship and Respondent made several efforts to contract second marriage but failed till date due to existence of first marriage. That the deponent has no source of income and from the date of desertion that is August 2021, it is father of deponent who is providing every kind of maintenance to her. Not only this, the minor son of deponent is also being maintained and taken care by the parents of deponent.



That the minor son of deponent is studying in one of the leading schools of Kashmir Valley that is Birla Open Minds International School and except tuition fee and bus fare, it is the father of deponent who is taking care of all the maintenance of the minor son. That the monthly maintenance expenditures of deponent and her minor son sums up Rs. 1,00,000/- for food, clothing, medicine, outings, private tuition, school expenses, extra-curricular activities, smart tuitions, transportation etc. That the Respondent is by profession a Doctor and working in SKIMS Soura Srinagar having monthly income of Rs. 1,14,000/- and has no dependents except deponent and her minor son because father of Respondent retired as District Horticulture Officer and mother of Respondent retired as Principle and are getting substantial monthly pension. On cross examination by the counsel for Respondent, the witness stated that her marriage was solemnized in the year 2016. That for two years after the marriage i.e upto 2018, the Petitioner and Respondent lead a peaceful life, and in those two years the Respondent was incurring the whole expenses of Petitioner. During those two years the Respondent became a doctor after qualifying PSC exam. The Respondent approached the court and sought permission for further studies during the tenure of his job. The deponent has no knowledge whether the Respondent is doing government job or not. In 2020, the deponent along with Respondent and her child stayed at her father's house situated at Parraypora Srinagar for two months. After that the deponent along with her husband started residing at Respondent's house situated at Baghat Kanipora Srinagar and upto 2021, the deponent stayed there. It is not true that Respondent used to visit the paternal house of deponent in order to meet the deponent and his child. However, when the Respondent used to visit the paternal house of the deponent, he use to quarrel with the deponent and used to tell her not to visit his house. Respondent himself pays the school fee of Petitioner No. 02. In the year 2021, the Respondent paid an amount of Rs 5000/- towards the Petitioner no. 01 on the occasion of birthday of Petitioner No. 02. Respondent has not paid any amount for the medicine of Petitioner no. 02. It is not true that the deponent is practising as Advocate before the High Court, however in future she is intending to do so. It is not true that the deponent has purchased an Alto Car in the year 2022. It is true that at this time the Respondent is not a government employee, however, he is getting stipend of Rs 1, 14, 000/- from SKIMS Srinagar, regarding which the deponent has obtained the salary certificate of Respondent which is annexed with the file, however, the said certificate does not bear any seal and signature of DDO. Deponent was working as teacher in BOMIS School for two months where she was getting salary of Rs 10000/ per month and the deponent resigned from the said job on 01 August 2022. After that the deponent filed the present petition. Deponent doesn't

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know the survey number of the land of Respondent. Respondent's orchard produces 3000 apple boxes yearly and orchard is of 20 Kanals. Deponent has went to these orchards which are situated at Bongam, Shalgam and Vehil. It is true that father of Respondent is suffering from heart disease and is also diabetic. The monthly bus fee and school of Petitioner no. 02 is Rs 9000/- but in the petition I have mentioned it as Rs 20000/- which includes other necessary expenses. It is true that deponent has sought a loan from bank but the deponent has mentioned in Para (g) of her Assets and Liability affidavit that her father has sought the said loan, which is not true, because the deponent has availed the said loan and the EMI is being paid by the father of deponent. Deponent has wrongly mentioned in the para (h)(2) of her asset and liability affidavit that deponent is paying the EMI. It is not true so far as stipend is concerned, in addition to the basic salary, HRA, DA, NPA, MA, CCA are not paid. It is not true that the deponent has sold her ornaments and purchased 2 kanals of land in Pinjora. Deponent has not mentioned in the earlier Asset Liability Affidavit that she is working as teacher in BOMIS because she has left the job prior to the filing of petition. Deponent's earlier Asset Liability Affidavit is wrong to the extent that the Respondent is not paying rent for his accommodation and in second Asset Liability Affidavit, the deponent has mentioned that the Respondent is getting 18% HRA. The deponent knows that it is an offence to file wrong affidavit before the court and can be imprisoned upto 7 years. No more questions.

Evidence Affidavit of Tariq Ahmad Khan S/o Mohd Yaseen Khan R/o Sofanaman Pinjura Shopian is reproduced as under:

I, Tariq Ahmad Khan S/o. Mohammad Yaseen Khan R/o. Sofanaman Pinjora, Shopian Age: 64-Years, Occupation: Businessman, do hereby solemnly affirm on oath as under:

That the deponent is the father of Petitioner no. 1 and knows Laila and Dr. Naiem-Ul-Haq, who had married in the year 2016. Out of the said wedlock, one issue namely Peerzada Nayhaan Ahrar has born, who is studying at Birla Open Minds International School. That in the month of August 2021, Respondent had deserted Petitioners and neglected them. At present, both are living at the residential house of deponent at Parraypora, Srinagar. That apart from other persons, deponent himself held many negotiations with Respondent for resuming matrimonial relationship and take Petitioners to residential house situated at Bagat-e-Kanipora, Srinagar but not only Respondent refused to resume relationship but was calling Petitioner no. 1 with bad names and was using abusive language against deponent and deponent's wife also. It is Pertinent to mention here that in the month of September 2021, Respondent came to the deponent's house situated at Sofanaman Pinjora, Shopian and take along

with himself minor son (Petitioner no. 2). On the same day, at evening when Respondent dropped back minor son, wife of deponent begged Respondent for reconciliation. After much requests, Respondent came inside deponent's house and in my presence, abused, beat Petitioner no. 1 by using hand and feet, spitted on her face and left. Such inhuman act of Respondent was a shock to deponent as well my wife which would we had never even dreamed. Due to this wild and inhuman act of Respondent as well continued negligence and acts of domestic violence towards Petitioners, deponent is very much depressed and had suffered minor heart stroke. That from the month of August 2021, deponent is taking care of all expenditures of Petitioners including food, clothing, health care, loan instalments, litigation expenditure, transportation, domestic helper etc. except school fee of Petitioner no. 2 which is paid by the Respondent. That Petitioner no. 1 is highly educated having qualification LLB-LLM, was doing practice as lawyer, was also the member of District Consumer Forum but had to sacrifice her professional job and employment opportunities due to unwillingness shown by the Respondent and also Petitioner no. 1 remained engaged with nurturing the family of Respondent and child rearing. That before desertion, Respondent was taking care of Petitioners to his best, provided residence at Bagat-e-Kanipora, Srinagar (shared house), where Petitioners were accustomed to high standard of living condition, accommodation was spacious, every advanced household item was available, provided quality food, health care. maintenance, domestic helper etc. Apart from this, Respondent was buying costly clothes for Petitioners with change of season, separate and Special dresses for party wears, providing outing expenditure etc. Deponent as grandfather had attended and joined birthday parties of Petitioner no. 2 (grandson) at residential house at Bagat-e-Kanipora, Srinagar which the Respondent had arranged and managed to his best and was spending more than Rs. 10,000/- on each birthday. That the Petitioners have monthly expenditures not below Rs. 1,00,000/- upon food, household items, clothing, transportation, domestic helper, other school expenditure excluding tuition fee, transportation and annual fee, health, electricity bill, extra-curricular activities etc. That the Petitioner no. 1 has no source of income and from the date of desertion that is August 2021, it is deponent who is providing every kind of maintenance to her. Not only her, Petitioner no. 2 is also being maintained and taken care by the deponent except his school fee. The Respondent is by profession a medical doctor, working at SKIMS Soura, having monthly income/salary of more than Rs. 1,00,000/- as information provided under RTI. That upon the income of Respondent, no one is dependent as parents of the Respondent are retired government employees, having sufficient monthly pension/



salary. That from August 2021 till date, there is continuous economic violence on behalf of Respondent towards Petitioners, verbal and emotional abuse like preventing Petitioners from accessing any part of the residential house situated at Bagat-e-Kanipora, Srinagar. That even during pendency of the petition, on the directions of this Hon'ble court, reconciliation process was initiated in presence of Hon'ble Secretary at ADR Centre, Shopian on 21.10.2022. During reconciliation, the Respondent in presence of Hon'ble Secretary, lawyers, respectable persons humiliated, abused Petitioner no. 1 and crossed all the limits by stating that Respondent will drag Petitioner no. 1 out of court etc. That the deponent is submitting the true facts and nothing has been concealed.

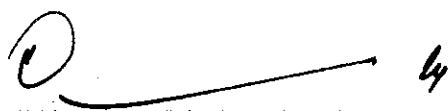
On cross examination by the Counsel for the Respondent stated that the Petitioner no.1 is the daughter of the deponent, whose marriage has been solemnized in the year 2016. From the year 2016 to the year 2021 the expenses of the Petitioners were borne out by the Respondent. During this period the parties were living peacefully. However, the Respondent and his parents at times, used to beat the Petitioner no. 1, but this fact has not been mentioned in the evidence affidavit of the deponent. With regard to this beating, the deponent has not lodged any complaint in the court or with the police, against the Respondent. The deponent has visited the house of the parties situated at Bongam only once on the occasion of Eid. It is incorrect that the Respondent was residing at Parraypora during the period when he was pursuing his MD. It is also incorrect that the parties have resided at Parraypora for a period of one year and thereafter at Bongam Shopian where the dispute arose in between the parties. The deponent has no knowledge with regard to the beatings meted out to the Petitioner by the Respondent and the parents of the Respondent during the period from 2016 to 2021, but the same was narrated by the Petitioner no. 1 to the deponent. Deponent has no knowledge whether the Respondent was appointed as a doctor through PSC and thereafter, left the said service. The Respondent apart from pursuing his MCH degree is also presently working at SKIMS Soura. The deponent has no knowledge whether the Respondent is receiving any salary or stipend but as per the report sought from the SKIMS through RTI, the Respondent is receiving salary in the same manner as a government employee. The school fee of the Petitioner no. 02 is borne out by the Respondent. Petitioner no. 01 was working as a member of the Consumer Forum, but the said forum was dissolved, with the result that the Petitioner no.1 did not remain its member. After that, the Petitioner no. 1 was working as a teacher in a Law College in Pulwama. However, the mother of the Respondent forced the Petitioner no.1 to resign from the said job. With the result, the Petitioner no. 01 joined the Birla School as a



teacher but left the said job after a period of four days. In Birla School the Petitioner no.1 was appointed after the year 2021. The flat situated at Palm Springs was purchased by the Petitioner no. 01 in the year 2013 after availing a loan from the bank but the EMIs of the said loan are paid by the deponent himself. The deponent does not know the DOB of the Petitioner no. 02 and on the birthdays of Petitioner no.02, the deponent has visited the house of the Respondent situated at Kanipora three times. The deponent has no knowledge whether after the completion of the degree by the Respondent from SKIMS, his services will be terminated or not. The deponent has mentioned in the evidence affidavit that the respondent is committing economic abuse against the Petitioner no. 01, which means that the Respondent is not fulfilling the requirements of life of the Petitioner no. 01. However, these expenses are being borne out by the deponent himself. Parents of the Respondent own a residential house at Kanipora Srinagar. Deponent has no knowledge whether the said house is owned by the sister or the father of the Respondent. The school fees of the Petitioner no. 02 amounts to Rs. 10,000 per month. No more questions

Statement of Shahzad Alam S/o. Abdul Rehman R/o. Parreypora, Barzullah Srinagar

Age: Years, Occupation: Doctor, do hereby solemnly affirm on oath as under: That the deponent knows the Laila and Dr.Naiem-Ul-Haq, who had married in the year 2016. Out of the said wedlock, one issue namely Peerzada Nayhan Ahrar has born, who is studying at Birla Open Minds International School. That from the month of August 2021, Respondent had deserted Petitioners and neglected them. That deponent himself held many negotiations with Respondent for resuming matrimonial relationship and take Petitioners to residential house situated at Bagat-e-Kanipora, Srinagar but not only Respondent refused to resume relationship but used bad names and abusive language against Petitioner no. 1 and her parents. That from the month of August 2021, it is the father of Petitioner no. 1 who is taking care of all expenditures of Petitioners including food, clothing, health care, loan instalments, litigation expenditure, transportation, domestic helper etc. except tuition fee of BOMIS school of Petitioner no. 2, his transportation fee there and annual fee, which is paid by the Respondent as told by Petitioner no. 1. That Petitioner no. 1 is highly educated having qualification LLB-LLM, was doing Practice as lawyer, was also the member of District Consumer Forum but had to sacrifice her professional job and employment opportunities due to unwillingness shown by the Respondent and also Petitioner no. 1 remained engaged with nurturing the family of Respondent and child rearing. That before desertion, Respondent was taking care of Petitioners to his best, provided residence at Bagat-e-Kanipora, Srinagar (shared house), where Petitioners were accustomed to high standard of living condition,



accommodation was spacious, every advanced household item was available, provided quality food, health care, maintenance, domestic helper etc. Apart from this, Respondent was buying costly clothes for Petitioners with seasonal changes, separate and special dresses for party wears, providing outing expenditure etc. Deponent too had also attended and joined birthday parties of Petitioner no. 2 at residential house at Bagat-e-Kanipora, Srinagar which the Respondent had arranged and managed to his best and not less than Rs. 10,000/- was the expenditure on each birthday. That the Petitioners have monthly expenditures not below Rs. 1,00,000/- upon food, household items, clothing, transportation, domestic helper, school expenditure excluding tuition fee, transportation and annual fee, health, electricity bill, extra-curricular activities etc. The Respondent is by profession a medical doctor, working at SKIM Soura, having monthly income of more than Rs. 1, 00,000/- as per recent RTI information shared by Petitioner no. 1 with the deponent. That upon the income of Respondent, no one is dependent as parents of the Respondent are retired government employees, having sufficient monthly pension salary. That from August 2021 till date, there is continuous economic violence on behalf of Respondent towards Petitioners, verbal and emotional abuse like preventing Petitioners from accessing any part of the residential house situated at Bagat-e-Kanipora, Srinagar.

On cross examination by counsel for Respondent, the deponent stated that the deponent is the uncle of Petitioner no. 1. The Petitioner no. 1 was married to the Respondent in the year 2016. However, the deponent does not know the date or the month of the marriage. After their marriage the deponent has never visited the matrimonial house of the Petitioner no. 1. After their marriage the relationship between the parties was cordial at Bongam. However, the deponent has no personal knowledge whether the marital relationship between the parties was cordial or not. The Petitioner no. 01 gave birth to Petitioner no. 02 in the month of December 2018. The parties lived at Baghat-e-Kanipora. The deponent has visited the said place three times and came to know that their matrimonial life was going on well and their standard of living was good because the deponent has attended the birthday celebration of applicant no. 2 and saw that a lot of money was being spent. After the marriage, all the expenses of the Petitioner no. 01 were incurred by the Respondent. The deponent has never witnessed any quarrels between the Petitioner no. 01 and the Respondent. The deponent has never witnessed the respondent using any abusive language against the Petitioner no. 01. The deponent has no knowledge as to in which class the Petitioner no. 2 is studying. However, the deponent knows that the Petitioner no. 02 is studying in Birla Open Minds School but does not know how much is his school fees. However, the deponent has heard that the Respondent pays the



school fees of Petitioner no. 02, i.e. the annual fees, bus fees and tuition fees is paid by the Respondent. The Petitioner no. 01 was staying at the house of her father situated at Pirpora for a few months. The Petitioner has done her masters in law (LLM) but is not a person of substance nor is not a earning hand. The deponent has heard that the Petitioner no. 01 has served as a member of District Consumer Forum at Shopian. It is correct that the Respondent is a government employee. It is correct that the Respondent is pursuing MCH degree which is a three-year course. Before joining the MCH degree, the Respondent has resigned his PSC Job. The deponent has no knowledge whether during the pursuit of the MCH course, the Respondent is receiving any stipend or any salary. During the cross examination, the advocate for the Petitioners namely Mr. Mubashir Gattoo repeatedly tried to answer the questions himself on behalf of the witness, as such the said advocate is reprimanded not to interfere during cross examination. The advocate for the Respondent tried to put personal questions to the witness which was disallowed by the court. The deponent has no knowledge as to whether the Respondent has divorced the Petitioner no. 1 or not. The deponent looked at the RTI application made on behalf of the Petitioner no. 1 and said that the respondent is receiving salary from SKIMS. The Respondent does not receive any HRA as the Respondent is residing in the government quarters. It is incorrect that the Respondent is receiving any HRA at the rate of Rs.12,000/ month. The deponent personally knows the parents of the Respondent. The deponent has no knowledge about the ownership of house situated at Kanipora, Srinagar. The deponent does not know whether said house belongs to the Respondent or to the father of the Respondent. When the Respondent and the Petitioner no. 01, got separated, during this period, both of them used to reside in Baghat-e-Kanipora Srinagar. It is true that it is an offence to give false evidence before the court of law. The deponent stated in his evidence affidavit that the Respondent used abusive language against the Petitioner no. 01, the said abusive language was used by the Respondent against the Petitioner no. 01 after the filing of the present case. Whereas, abusive language was not used by the respondent against the Petitioner no. 01 before the filing of the case. If it is written in the deponent's evidence affidavit that the Respondent used abusive language during the subsistence of marriage, then it is a wrong statement. Whatever is written in the evidence affidavit filed by the deponent, was written on the instructions of the deponent himself. The deponent has no personal knowledge as to the monthly expenses of the Petitioners. The deponent does not know how much salary was received by the Petitioner no. 01 when she was the member of District Consumer Forum. The deponent has no knowledge whether the Petitioner no. 01 has resigned from the said job or the said forum itself was dissolved. As



such the evidence affidavit of the deponent is wrong to the extent that the Petitioner no. 01 has resigned from the said job. The Petitioner no. 01 was working in the BOMIS school only for a period of three days. And after the said period of three days, the Petitioner no. 01 left the said job. Deponent has never made any shopping with the Petitioner no. 01. However, after having a look upon the clothing of the Petitioner no. 01, the deponent can figure out as to how much expensive the said clothing were. The deponent came to know from the Petitioner no.01 that the father of the Respondent is receiving a pension of 53,000 per month. When a person does not properly maintain his wife, then it causes economic abuse to his wife. The deponent has no knowledge as to how much amount has been paid by the Respondent towards the Petitioner no. 02 and further the deponent has no knowledge as to how much amount of fees the Respondent has paid towards the schooling of the Petitioner no. 02. As such the deponent cannot say whether the Respondent has committed any economy abuse against the Petitioner no. 02. Further deposes that the deponent has no knowledge as to whether the Respondent has paid any amount towards Petitioner no. 02 other than the school fees. Before filing the present case there was a compromise going on between the parties. It is true that the said compromise was yet to be finalized when the Petitioner no. 01 filed the present petitions. The deponent has no knowledge as to whether during the period of stay of the parties at Parraypora, Srinagar, the respondent has brought any Washing Machine, Fridge, and TV or not. Deponent has no knowledge as to whether the parties have shifted their residence from Parraypora to Shopian or not. It is incorrect to say that the dispute between the parties arose from the time when they were residing at Parraypora. At last, the parties were residing at Bhagat-e-Kanipora. It is incorrect to say that the separation between the parties started from Bongam Shopian. No more questions.

Statement of witness namely Shaheena Akhter D/o Shamasdin Khan R/o Kudara Bandipora Kashmir Age 20 years, Occupation , Domestic Servant.

That the deponent knows that parties to the petition as the deponent is working as domestic servant from last 15 years in Petitioner no. 01's home. In the marriage ceremony of the parties the deponent was present which was solemnized in the year 2016. Out of the said wedlock one male issue was begotten on 27-12-2018 whose name is Naihan. Deponent has on several occasions resided at the Respondent house situated at Kanipora Srinagar where the deponent was taking care of child. Usually, the sister of deponent was working in the house of Respondent. Deponent's monthly salary was Rs 10000/- and in addition the Petitioner's family use to pay additional amount to the deponent. When the deponent was working at the Respondent's house, the salary was being paid by parties to the petition and also use to bring

clothes for the deponent. Respondent always use to quarrel with the Petitioner and also use to hurl abuse at her. Respondent's mother also use to not to talk with the Petitioner. This all use to happen in my presence. Deponent always use to remain present in the birthday party of their son i.e Petitioner no. 02 and the expenses incurred were Rs 10000/-. All the birthday parties were celebrated at Kanipora except one which was celebrated at Jammu. In these parties the parents and other relatives of the Petitioner no. 01 remained present. The monthly expenses of Petitioner is Rs 40000/- in which transport, medicine and clothes are included. The monthly expenditure over Petitioner no., 02 is Rs 60000/- which includes books, toys, school fee etc. From last one year the Petitioner no. 01 is residing with her parents and the expenses are incurred by her father. It has come to the knowledge of the deponent that school fee of the Petitioner no. 02 is paid by Respondent. The occurrence is of September 2021, the Respondent came to pick his son at the Petitioner no. 01's house and later when the Respondent came to drop his son back to the house of Petitioner no. 01, at this time he was not ready to enter the said house but upon the request of the mother of the petitioner, he entered the house of Petitioner and also spit at the Petitioner and hurled abuses at the Petitioner, this all happened in presence of the deponent. The Petitioners are presently residing at her father's house situated at Parraypora, Srinagar.

On cross examination by the counsel for Respondent the deponent stated that Petitioner no. 01 and Respondent got married in the year 2016 and lead a peaceful life upto 2021. In the year 2018, the Petitioner no. 02 was born. After the delivery, the Petitioner no. 01 went to her parental home. After the birth of Petitioner no.02 the parties use to live a happy life. It is true that at the time of delivery whatever expenses were incurred that was borne by the Respondent, upto what extent those expense where she has no knowledge. Petitioner has monthly expenditure of Rs 1lac which she has stated in her affidavit.

At this stage the counsel for the Petitioner stated that he doesn't want to adduce more evidence and the evidence for Petitioner was closed and Respondent was directed to produce evidence.

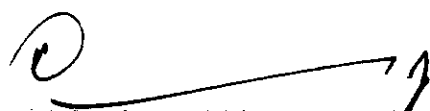
The Respondent has filed evidence affidavit of himself only on 06-04-2023 which is reproduced as under:-

I, Dr Naiem-UI-Haq Ahrar S/o Farooq Ahmad Ahrar R/o Bongam Shopian Tehsil and District Shopian Age 37 Years, Occupation Medical Researcher (Pursuing MCH Degree), do hereby solemnly affirm on oath as under:

That the deponent has been married with the Petitioner no .01 in the year 2016 in accordance with the Shariat and Muslim personal Law and custom prevalent in the families and out of the



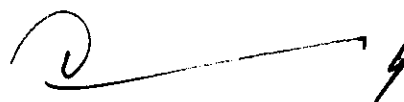
said wedlock one male issue has begotten namely Peerzada Nayhan Ahrar and thereafter due to the dispute in between the parties the deponent tried to resolve it but to the ill fate of the deponent the Petitioner no.1 didn't returned to her matrimonial relationship and due to the cruel some nature of the Petitioner no. 1 which tarnished the hopes of the deponent. That soon after the marriage the deponent was bullied, tortured and humiliated every day for reasons one would laugh (like Sona Kam Hai, Ye Kyun Nai Laya Wo Kyun Nai Laya etc) by the Petitioner no. 01. The deponent could sense the high tone of demands and gradually witnessed the experience of the tone changing to anger, rage, vengeance and enmity towards the deponent and his parents, who in their best capacity had tried to elicit the best out of the dreadful relation. That every day the deponent was thrashed verbally and emotionally like a punching bag, however, the deponent left no stone unturned to set the things right at every step despite unbearable tortures and toxicities at the hands of Petitioner no.01, however, the Petitioner no. 01 didn't mend her behaviour. That the deponent kept pulling his life along with failed attempts of reconciliation with every single passing moment the deponent's life continued to be pathetic in its worst possible face ever known to the deponent. That the deponent had dreams regarding his career and married life but the Petitioner no. 01 forced the deponent to live separately from his parents, despite being the lone son of his parents and deponent was forced to leave his old and sick parents all alone. That during the post-graduation at SKIMS Srinagar, the deponent and the Petitioners were living at Parental house of Petitioner no.1 at Srinagar away from his parents just with a hope that good sense will prevail over her but all in vein. The Petitioner no.01 didn't mend her behaviour and continued the mental torture of the deponent. That the deponent after returning from hectic duty at SKIMS, was sleeping without food and was leaving for duty without breakfast and the Petitioner no. 01 near ever care for the same. That during the PG the Petitioner no. 01 had a multiple fights with the deponent's mother and was often disrespecting the father of the deponent, finally the deponent was forced to live with the Petitioner no. 01 at her parental residence and the deponent agreed for the same only to save the relationship. That after the Petitioner no. 1 conceived the deponent came to know that the Petitioner no. 01 is suffering from bipolar disorder with aggressive mental condition and the deponent was shocked to know about the same but still the deponent tried his level best to pull the marriage as long as he could. That the Petitioner and her relatives came to the work place of deponent and disrespected him before the staff and other persons and also threatened the deponent of dire consequences. That the deponent states that when the things didn't worked, the deponent was forced to pronounce Talaq-i-Ahsan over the Petitioner no. 01 and also sent a copy of the



same to the Petitioner no. 01 through a registered post. That the Petitioner no. 01 is a professional Advocate having LLM Degree, at present practicing before the Hon'ble High Court of J&K and Ladakh at Srinagar and is also a retainer lawyer for J&K Bank earning an amount of Rs 01 Lac per month. That the deponent is pursuing MCH Degree from SKIMS Srinagar and is presently an unemployed person living on monthly stipends and is putting up at Hostel where he has to pay rent and mess charges. That the deponent has a Heart Patient father whose medical expenses are also borne by the deponent as his own pension doesn't suffice. That the deponent says that the Petitioner no. 01 has sufficient means to maintain herself and is not entitled to maintenance as being a divorcee lady. That the deponent says that the Petitioner no. 2 is being maintained by the deponent exclusively being the son of the deponent. That the Petitioner no. 01 is owner and possessor of a residential flat at Royal Palm Springs Humhama Srinagar and the Petitioners are presently residing at a another residential house situated at Parraypora Srinagar which belongs to the father of the Petitioner no. 01. Further the Petitioner no. 1 took away all the golden ornaments from the deponent and sold it and purchased land at Pinjora Shopian for herself.

The counsel for the Petitioner was directed to cross examine the Respondent as witness, however, the counsel for Petitioner's has failed to cross-examine the witness despite repeated opportunities to do the same and finally on 21-12-2023, the right to cross-examine was closed as the same has been waived of by the counsel for Petitioners. At this stage the counsel for the Respondent submitted that he doesn't want to adduce further evidence and accordingly the file was fixed for final arguments and orders.

I have heard the Ld. Counsel for the Petitioners and Respondent at length, the relation in between the parties stands established by way of the evidence on record. Furthermore, from the evidence tendered, it is established that Respondent being husband of Petitioner has deserted her and has neglected to maintain the Petitioner. However, the whole evidence led unanimously states that Petitioner no. 01 is a professional working lady. working as advocate before the Hon'ble High Court Of J&K&L and is also a Panel lawyer of J&K Bank for the district Shopian as per the certificate produced by the Respondent. Further, the Petitioner no. 01 has admitted in her cross examination that she was working in Birla Open Minds International School, Galander and was receiving a salary of 10,000/month. The Petitioner no. 01 further admitted that she resigned from the said Job on 01-08-2022 i.e. just one day before filing of the present petition. No convincing reason for the resignation has been put forth by the Petitioner no. 01. At the same time the onus of resignation cannot be put on the respondent as admittedly the parties were living separately from past one year at the time of



the resignation i.e. since August 2021. It has also been established by way of evidence the Petitioner no.01 was working during the subsistence of the marriage and was also member of the District Consumer Forum. However, the Petitioner no. 01 has not been able to prove her allegation that she resigned from the said job on account of the unwillingness shown by the Respondent/husband, as it has come in the evidence that the Forum itself was dissolved. The Petitioner no. 01 is thus, an educated and professionally qualified lady having a qualification of LLB-LLM which fact cannot be ignored in determining the quantum of maintenance. On the other hand, it has been established by way of evidence that the Respondent is not a permanent government employee but is pursuing his MCH Degree from SKIMS and is surviving on stipend. As such the Respondent will not get the said stipend after the completion of the said degree which is due for completion. However, keeping in view the social status of the parties and the concept of Section 125 CrPC being a social legislation this court is not averse to the grant of maintenance to the Petitioners. From the perusal of the file it was observed that interim application has been decided on 13-10-2022 whereby the Respondent was directed to pay a monthly maintenance of Rs 13000/- towards the Petitioner no. 01 and Rs 15000/- towards the Petitioner no. 02 i.e. a total of Rs 28000/- and same was challenged by the Respondent before the court of Sessions Judge Shopian wherein the Hon'ble Court of Sessions Judge, Shopian vide order dated 11-12-2023 modified the order dated 13-10-2022 passed by Ld. Chief Judicial Magistrate, Shopian to the extent that the Respondent shall pay interim monthly maintenance of Rs 5000/- and Rs 10000/- in favour of the Petitioner no. 01 and Petitioner no. 02 respectively from the date of institution of interim application i.e. 01-08-2022 . The same order was challenged before the Hon'ble High Court of J&K&L at Srinagar and the Hon'ble High Court observed that the Respondents is due for completion of his course and payment of stipend is going to be co-terminus with the completion of course and that will be literally leaving the Respondent without any employment at his disposal and render him without any source of income. This aspect of the matter can figure later at the relevant point of time but for the time being the court finds prima facie case and in the meantime it was directed that the Respondent shall pay to the Petitioners a lump-sum amount of Rs 20000/- per month before the court of Chief Judicial Magistrate Shopian.

In terms of section 125 Cr.P.C a duty is cast upon husband to maintain his wife and children. The aim and objects of section 125 Cr.P.C is social one in order to save the claimants from the destitution and other social evils. It is not the paying capacity but the earning capacity which is the determining factor for fixing the quantum. While determining the quantum of



maintenance, the Hon'ble Supreme Court in **Jabsir Kaur Sehgal v. District Judge Dehraun & Ors. [JT 1997 (7) SC 531: 1997 (7) SCC 7]** has held as follows:-

“The court has to consider the status of the parties, their respective needs, the capacity of the husband to pay having regard to the reasonable expenses for his own maintenance and of those he is obliged under the law and statutory but involuntary payments or deductions. The amount of maintenance fixed for the wife should be such as she can live in reasonable comfort considering her status and the mode of life she was used to when she lived with her husband and also that she does not feel handicapped in the prosecution of her case. At the same time, the amount so fixed cannot be excessive or extortionate.”

Grant of maintenance to wife has been perceived as a measure of social justice by the Hon'ble Supreme Court. In **Chaturbhuj v. Sita Bai [JT 2008 (1) SC 78: 2008 (2) SCC 316]**, it has been ruled that: - “Section 125 Cr.P.C is a measure of social justice and is specially enacted to protect women and children and as noted by this Court in **Captain Ramesh Chander Kaushal v. Veena Kaushal [1978 (4) SCC 70]** falls within constitutional sweep of Article 15(3) reinforced by Article 39 of the Constitution of India. It is meant to achieve a social purpose. The object is to prevent vagrancy and destitution. It provides a speedy remedy for the supply of food, clothing and shelter to the deserted wife. It gives effect to fundamental rights and natural duties of a man to maintain his wife, children and parents when they are unable to maintain themselves. The aforesaid position was highlighted in **Savitaben Somabhai Bhatiya v. State of Gujarat [JT 2005 (3) SC 164]**.”

Further, the Hon'ble Supreme Court in **Rajnesh V/s Neha SLP No. 9503 of 2018 at page 27 observed that:**

The objective of granting interim / permanent alimony is to ensure that the dependant spouse is not reduced to destitution or vagrancy on account of the failure of the marriage, and not as a punishment to the other spouse. There is no straitjacket formula for fixing the quantum of maintenance to be awarded. The factors which would weigh with the Court inter alia are the status of the parties; reasonable needs of the wife and dependent children; whether the applicant is educated and professionally qualified;

Again, in **Rajnesh V/s Neha SLP No. 9503 of 2018 at page 28 Para 4** the Hon'ble Supreme Court held that:



The maintenance amount awarded must be *reasonable and realistic*, and avoid either of the two extremes i.e. maintenance awarded to the wife should neither be so extravagant which becomes oppressive and unbearable for the respondent, nor should it be so meagre that it drives the wife to penury. The sufficiency of the quantum has to be adjudged so that the wife is able to maintain herself with reasonable comfort.

The Hon'ble **Delhi High Court in Bharat Hedge v Smt. Saroj Hegde** AIR 2007 DELHI 197, inter alia laid down the following factors to be considered for determining maintenance:

1. Status of the parties.
2. Reasonable wants of the claimant.
3. The independent income and property of the claimant.
4. The number of persons, the non-applicant has to maintain.
5. The amount should aid the applicant to live in a similar lifestyle as he/she enjoyed in the matrimonial home.
6. Non-applicant's liabilities, if any.
7. Provisions for food, clothing, shelter, education, medical attendance and treatment etc. of the applicant.
8. Payment capacity of the non-applicant.
9. Some guess work is not ruled out while estimating the income of the non-applicant when all the sources or correct sources are not disclosed.

The Hon'ble High Court of Jharkhand in **Niraj Kathuria Vs. The State of Jharkhand & Palak Aggarwal Cr. Revision No. 535 of 2022 at Page 13 Para 23** held that certainly it is the moral duty of the husband to pay maintenance to the wife so that she may also reside in the same status as would have been in the matrimonial house but it does not mean to squeeze the milk from of the husband that the marriage becomes a felony for the husband.

This being the position in law, it is the obligation of the husband to maintain his wife. When the woman leaves the matrimonial home, the situation is quite different. She is deprived of many a comfort. Sometimes the faith in life reduces. Sometimes, she feels she has lost the tenderest friend. There may be a feeling that her fearless courage has brought her the misfortune. At this stage, the only comfort that the law can impose is that the husband is bound to give monetary comfort. That is the only soothing legal balm, for she cannot be

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allowed to resign to destiny. Therefore, the lawful imposition for grant of maintenance allowance.

Keeping in view the aforesaid discussion and the statement of witnesses, this court cannot ignore the fact that there is a huge contradiction in the statement of witnesses of the Petitioner with respect to their evidence affidavits filed and the asset liability affidavit filed by the Petitioner. However, in terms of section 125 Cr.P.C a duty is cast upon husband to maintain his wife and children. The aim and objects of section 125 Cr.P.C is social one in order to save the claimants from the destitution and other social evils. As such the petition in hand is allowed and keeping in view the requirements established by way of evidence and the social status of the parties, the Respondent is directed to pay a monthly maintenance of an amount of Rs 20,000/- towards the Petitioners i.e maintainace amount of Rs. 10,000/- towards petitioner no. 01 and Rs 10,000/- towards the Petitioner no. 02 as such it would be proper to effect maintenance from the date of petition itself. However, in case the Respondent has paid any excess amount towards the Petitioners, that should be adjusted and carry forward accordingly. Petition is accordingly disposed of and shall after due completion be consigned to records.

Announced

02-2-24

Chief Judicial Magistrate
Shopian

2/2/24